

THE PHILIPPINE REVISED PENAL CODE & PROPOSED CRIMINAL CODE OF THE PHILIPPINES

Comprehensive Public Codal, Modern Legislative Reforms Compendium, Comparative Matrix (Old RPC vs. New Criminal Code), and Landmark Amending Statutes (RA 10951, RA 11594, RA 11648, RA 10592, RA 10175)

 GOVERNING STATUTE Act No. 3815 (as amended) RA 10951 & Recent Laws	 REFORM INITIATIVE DOJ Criminal Code Committee & UP Law Center Public Draft	 JURIS DOCTOR STUDY Manila Law College (MLC) Criminal Law 1 & 2 Compendium
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1. EXECUTIVE LEGAL OVERVIEW & STATUS REPORT

As of 2026, criminal jurisprudence in the Philippines operates under a dual framework of active statutory governance and comprehensive codification reform:

- The Enacted Law in Force:** The Revised Penal Code (Act No. 3815), which took effect on January 1, 1932, remains the governing primary criminal statute of the Republic of the Philippines. It is continuously modernized through major amending acts, notably Republic Act No. 10951 (adjusting penalty thresholds and fines to 21st-century values), Republic Act No. 11594 (increasing perjury penalties), Republic Act No. 11648 (raising the age of sexual consent to 16 years), Republic Act No. 10592 (expanding Good Conduct Time Allowances), and special penal laws covering cybercrime, dangerous drugs, and human trafficking.
- The Proposed 'New RPC' (Criminal Code of the Philippines):** To address nearly a century of statutory fragmentation—where over 400 special penal laws exist alongside the 1932 Code—the Department of Justice (DOJ) Criminal Code Committee (CCC), in official partnership with the University of the Philippines (UP) Law Center, drafted and publicly submitted the proposed 'Criminal Code of the Philippines'. Active legislative bills (House Bills No. 4374, 5446, 7132, 7206) are under active deliberation in the House of Representatives Subcommittee on Penal Laws (Committee on Revision of Laws).

EXECUTIVE DOCTRINE: ENACTED LAW VS. PROPOSED CODE

Current Status: Act No. 3815 (as amended) is the binding penal statute applied in all Philippine courts and tested in the Philippine Bar Examinations.

Draft Status: The 'New RPC' / Proposed Criminal Code represents the future legislative direction aimed at consolidating, simplifying, and standardizing all criminal offenses into plain English, eliminating archaic Spanish terms, introducing corporate criminal liability, and instituting modern restorative sentencing.

2. PART I: THE PROPOSED CRIMINAL CODE OF THE PHILIPPINES ("NEW RPC")

2.1 Mandate and Background of the Reform

The Criminal Code Committee (CCC) was originally constituted by the Department of Justice to draft a simple, modern, organic, and truly Filipino Criminal Code. The project arose from critical deficiencies in the 1932 RPC:

- 1. Archaic Terminology: The 1932 RPC is a translation of the 1870 Spanish Código Penal, utilizing antiquated concepts and complex Spanish penalty nomenclatures (such as *arresto mayor*, *prision correccional*, *prision mayor*, *reclusion temporal*, *reclusion perpetua*, and *destierro*) that are unfamiliar to the general public.
- 2. Statutory Proliferation & Inconsistency: Thousands of separate special penal laws (SPLs) have been enacted over nine decades, creating conflicting rules on graduation of penalties, mitigating/aggravating circumstances, intent vs. strict liability, and subsidiary liability.
- 3. Modern Offense Gaps: The original RPC lacked systematic frameworks for transnational crimes, digital/cyber offenses, environmental destruction, financial fraud, money laundering, and crimes committed by corporations and juridical entities.

2.2 Two-Book Master Structure of the Proposed Code

The Proposed Criminal Code simplifies the traditional penal architecture into two streamlined books:

- • Book One (General Principles of Criminal Law): Enunciates foundational constitutional and human rights principles, territorial and extraterritorial scope, corporate/juridical criminal liability, intent (*dolo*) vs. negligence (*culpa*), justified conduct, standardized modifying circumstances, and a rationalized 5-tier penalty system.
- • Book Two (Crimes and Penalties): Reclassifies all offenses—both codal and special laws—into three logical and distinct divisions:
 - a. Title I: Crimes Against Persons (Life, Bodily Integrity, Liberty, Security, Sexual Integrity)
 - b. Title II: Crimes Against Property and Economic Order (Theft, Fraud, Corporate Crimes, Cyber Offenses, Plunder)
 - c. Title III: Crimes Against the State, Public Order, and Administration of Justice (Treason, Rebellion, Corruption, Perjury, Obstruction)

2.3 Comparative Matrix: Current RPC (Act 3815) vs. Proposed Criminal Code

Feature / Aspect	Current Revised Penal Code (Act 3815 as amended)	Proposed Criminal Code of the Philippines ('New RPC')
Language & Form	Archaic Spanish translations; complex Latin & Spanish terminology.	Modern, clear, accessible Plain English and Filipino.
Penalty Structure	6 principal imprisonment scales (<i>Arresto Menor</i> to <i>Reclusion Perpetua</i>) + <i>Destierro</i> .	5 Numbered Penalty Levels/Categories (Level 1 to Level 5) with standardized ranges.
Corporate Liability	Individual liability only; corporate officers held personally liable.	Express criminal liability for juridical persons and corporations, with direct corporate fines and sanctions.
Special Penal Laws	Hundreds of uncodedified, separate statutory enactments.	Total consolidation of special penal laws into Book Two of the unified Code.

Sentencing & Penology	Heavy reliance on institutional incarceration; classical retributive theory.	Balanced restorative justice, mandatory community service, and rehabilitative sentencing alternatives.
Age of Sexual Consent	Originally 12, raised to 16 via RA 11648 (2022).	Harmonized at 16 years old with modern online exploitation provisions (OSAEC / RA 11930).

3. PART II: COMPLETE CONSOLIDATED REVISED PENAL CODE (ACT NO. 3815 AS AMENDED)

3.1 Book One: General Principles Affecting Criminal Liability (Articles 1–113)

Preliminary Title & Article 2: Territoriality & Extraterritoriality

The RPC applies within the Philippine archipelago, including its atmosphere, interior waters, and maritime zone. Article 2 extends jurisdiction extraterritorially: (1) Offenses on Philippine ship or airship; (2) Forging or counterfeiting Philippine coins, currency, or obligations; (3) Introducing forged securities into the country; (4) Offenses committed by public officers in the exercise of their functions; (5) Crimes against national security and law of nations (treason, espionage, piracy).

Article 3: Felonies Committed by Deceit (Dolo) and Fault (Culpa)

Felonies are acts and omissions punishable by law. Committed either by dolo (malice/deceit with freedom, intelligence, and intent) or culpa (imprudence, negligence, lack of foresight, or lack of skill). Mistake of fact (Ignorantia facti excusat) negates criminal intent provided the act would have been lawful had the facts been as the accused believed them to be (US v. Ah Chong).

Articles 4–6: Extent of Criminal Liability & Stages of Execution

Criminal liability is incurred by any person committing a felony, although the wrongful act done be different from that which he intended (Aberratio Ictus - mistake in blow, Error in Personae - mistake in identity, Praeter Intentionem - injurious result greater than intended). Impossible Crimes (Art. 4, par. 2) occur when an act would be an offense against persons or property were it not for inherent impossibility of accomplishment or employment of inadequate or ineffectual means.

Stages: (1) Consummated: All elements necessary for execution and accomplishment are present; (2) Frustrated: Offender performs all acts of execution which should produce the felony as a consequence but reason independent of his will prevents it; (3) Attempted: Offender commences commission directly by overt acts but does not perform all acts of execution by reason of some cause other than his spontaneous desistance.

Articles 11–12: Justifying and Exempting Circumstances

Justifying Circumstances (Art. 11 - No Crime, No Criminal, No Civil Liability except Art. 11, par. 4): (1) Self-defense (Unlawful aggression, reasonable necessity of means employed, lack of sufficient provocation); (2) Defense of relatives; (3) Defense of strangers; (4) State of necessity (Avoidance of greater evil or injury); (5) Fulfillment of duty or lawful exercise of right; (6) Obedience to an order issued by a superior for a lawful purpose.

Exempting Circumstances (Art. 12 - There is a Crime, but No Criminal; Civil Liability remains): (1) Imbecility or insanity; (2) Minority (under RA 9344 as amended by RA 10630: 15 and below exempt; above 15 but below 18 exempt unless acted with discernment); (3) Accident without fault or intention; (4) Irresistible force; (5) Uncontrollable fear of equal or greater injury; (6) Insuperable cause.

Articles 13–15: Mitigating, Aggravating, and Alternative Circumstances

Mitigating (Art. 13): Incomplete justifying/exempting, under 18 or over 70, praeter intentionem, sufficient provocation, immediate vindication of grave offense, passion or obfuscation, voluntary surrender, plea of guilty before presentation of prosecution evidence, physical defect, illness, and analogous circumstances.

Aggravating (Art. 14): 21 circumstances including taking advantage of public position, contempt of public authorities, dwelling, abuse of confidence, nighttime, band, recidivism, habituality, reiteration, reward, fire/poison, evident premeditation, craft/disguise, superior strength, treachery (alevosia), ignominy, unlawful entry, breaking walls, aid of minors/motor vehicles, and cruelty.

Alternative (Art. 15): Relationship, Intoxication (mitigating if not habitual or intentional; aggravating if habitual or intentional), and Degree of Instruction/Education.

Articles 21–88: Modernized Penalty Framework & Preventive Imprisonment

Scale of Principal Penalties: Reclusion Perpetua (20 years and 1 day to 40 years), Reclusion Temporal (12 years and 1 day to 20 years), Prision Mayor (6 years and 1 day to 12 years), Prision Correccional (6 months and 1 day to 6 years), Arresto Mayor (1 month and 1 day to 6 months), Arresto Menor (1 day to 30 days). Destierro is a principal penalty banishing the convict from entering designated radius (25 to 250 km).

Preventive Imprisonment (Art. 29 as amended by RA 10592): Credited in full (4/5 if accused did not sign agreement to abide by disciplinary rules) against sentence.

3.2 Book Two: Specific Crimes and Penalties (Articles 114–367)

Title 1: Crimes Against National Security & Law of Nations (Arts. 114–123)

Treason (levying war or adhering to enemies giving aid and comfort; Two-Witness Rule on the same overt act), Espionage (Art. 117), Piracy (Art. 122) and Qualified Piracy (Art. 123 - seizing vessel by boarding/firing, abandonment of victims, murder, homicide, physical injuries, or rape).

Title 2: Crimes Against the Fundamental Laws of the State (Arts. 124–133)

Arbitrary Detention (Art. 124 - detention of person without legal ground by public officer), Delay in Delivery of Detained Persons to Judicial Authorities (Art. 125 as amended: 12 hours for light penalties, 18 hours for correctional, 36 hours for afflictive/capital), Violation of Domicile (Art. 128), Malicious Search Warrants (Art. 129), Interruption of Religious Worship (Art. 132), and Offending Religious Feelings (Art. 133).

Title 3: Crimes Against Public Order (Arts. 134–160)

Rebellion / Insurrection (Art. 134 - rising publicly and taking arms against government to remove territory/armed forces from allegiance), Coup d'État (Art. 134-A - swift attack accompanied by violence/intimidation directed against military/police installations to seize state power), Sedition (Art. 139), Direct Assault (Art. 148 - attack/force/intimidation against person in authority or their agent engaged in official duties), Resistance and Serious Disobedience (Art. 151), Tumults and Public Disorders (Arts. 153–156).

Title 4: Crimes Against Public Interest (Arts. 161–189)

Counterfeiting Great Seal, Coins, and Notes (Arts. 161–168), Falsification of Legislative, Public, Official, and Commercial Documents (Arts. 170–172), Perjury (Art. 183 as amended by RA 11594 - now penalized with Prision Mayor in its minimum to medium periods, or maximum if committed by public officer with perpetual disqualification), Frauds and Monopolies (Arts. 185–189).

Title 7: Crimes Committed by Public Officers (Arts. 203–245)

Direct Bribery (Art. 210 - accepting gift in connection with performing an act constituting a crime, unjust act, or refraining from official duty), Indirect Bribery (Art. 211), Qualified Bribery (Art. 211-A), Malversation of Public Funds or Property (Art. 217 as amended by RA 10951 - tiered brackets from below P40,000 up to exceeding P8.8 million punishable by Reclusion Temporal to Reclusion Perpetua), Technical Malversation (Art. 220), Failure to Render Accounts (Art. 218), Usurpation of Powers (Art. 239), and Unlawful Appointments (Art. 244).

📖 Title 8: Crimes Against Persons (Arts. 246–266-D)

Parricide (Art. 246 - killing father, mother, child whether legitimate or illegitimate, or legitimate other ascendants/descendants/spouse), Murder (Art. 248 - killing with treachery, price/reward, inundation/poison, evident premeditation, cruelty, or out of superior strength), Homicide (Art. 249), Infanticide (Art. 255 - killing child less than 72 hours old), Abortion (Arts. 256–259), Physical Injuries (Arts. 262–266), Rape (Arts. 266-A to 266-D as amended by RA 11648 - raising statutory rape threshold to below 16 years of age).

📖 Title 9: Crimes Against Personal Liberty and Security (Arts. 267–292)

Kidnapping and Serious Illegal Detention (Art. 267 - detaining person for more than 3 days, simulating public authority, inflicting serious physical injuries, or victim is minor/female/public officer; mandatory Reclusion Perpetua to Death if for ransom), Slight Illegal Detention (Art. 268), Unlawful Arrest (Art. 269), Grave Threats (Art. 282), Light Threats (Art. 283), Grave Coercion (Art. 286).

📖 Title 10: Crimes Against Property (Arts. 293–332)

Robbery (Arts. 293–305 - taking personal property belonging to another with intent to gain by means of violence against or intimidation of persons, or using force upon things), Brigandage (Art. 306), Theft (Arts. 308–309 as amended by RA 10951 - taking personal property with animus lucrandi without violence or intimidation), Qualified Theft (Art. 310 - theft by domestic servant, with grave abuse of confidence, coconuts, mail, or motor vehicle, penalized two degrees higher), Estafa / Swindling (Arts. 315–316 as amended by RA 10951 - unfaithfulness, abuse of confidence, deceit, fraudulent checks), Arson (Arts. 320–326 superseded by PD 1613), Malicious Mischief (Arts. 327–331).

📖 Title 11: Crimes Against Chastity (Arts. 333–346)

Adultery (Art. 333 - married woman having carnal relations with man not husband), Concubinage (Art. 334 - husband keeping mistress in conjugal dwelling, sexual intercourse under scandalous circumstances, or cohabiting elsewhere), Qualified Seduction (Art. 337 as amended by RA 11648), Simple Seduction (Art. 338), Acts of Lasciviousness (Art. 336).

📖 Title 13 & 14: Crimes Against Honor & Quasi-Offenses (Arts. 353–365)

Libel (Art. 353 - public and malicious imputation of a crime, vice, or defect tending to cause dishonor, discredit, or contempt; Cyber Libel under Sec. 4(c)(4) of RA 10175 with penalty one degree higher), Slander (Oral Defamation - Art. 358), Slander by Deed (Art. 359), Incriminating Innocent Person (Art. 363), Intriguing Against Honor (Art. 364). Quasi-Offenses (Art. 365 - Reckless Imprudence and Simple Negligence causing criminal results).

4. PART III: LANDMARK AMENDING STATUTES & RA 10951 FINE ADJUSTMENT SCHEDULE

Republic Act No. 10951 (enacted August 29, 2017) fundamentally transformed the Revised Penal Code by updating obsolete monetary values, property thresholds, and fine scales to align with current economic conditions. In accordance with the Supreme Court doctrine in *Hernan v. Sandiganbayan* (G.R. No. 217874) and Article 22 of the RPC, RA 10951 applies retroactively to all convicts and pending cases whenever favorable to the accused.

4.1 Master Comparative Schedule of Key RPC Articles Adjusted by RA 10951

RPC Art.	Offense / Description	Original 1932 Values / Fines	Modern RA 10951 Values / Fines
Art. 148	Direct Assault upon Authorities	Fine not exceeding P1,000	Fine not exceeding P200,000 (serious) or P100,000 (simple)
Art. 183	Perjury / False Testimony	Fine not exceeding P1,000 (Arresto Mayor to Prision Correccional min)	Amended further by RA 11594: Prision Mayor (6 yrs 1 day to 10 yrs) & fine up to P1,000,000

Art. 217	Malversation of Public Funds	P200 to P22,000 threshold tiers	Tier 1: Up to P40,000 Tier 2: >P40k to P1.2M Tier 3: >P1.2M to P2.4M Tier 4: >P2.4M to P4.4M Tier 5: >P4.4M to P8.8M Tier 6: Exceeding P8.8M (Reclusion Perpetua)
Art. 309	Penalties for Simple Theft	P50 to P22,000 threshold tiers	Tier 1: >P2.2M (Prision Mayor max to Reclusion Temporal min) Tier 2: >P1.2M to P2.2M Tier 3: >P600k to P1.2M Tier 4: >P20k to P600k Tier 5: >P5k to P20k Tier 6: >P500 to P5k Tier 7: Not exceeding P500
Art. 315	Swindling / Estafa	P200 to P22,000 threshold tiers	Tier 1: >P4.4M (Prision Correccional max to Prision Mayor min + 1 yr per P1M, max 20 yrs) Tier 2: >P2.4M to P4.4M Tier 3: >P1.2M to P2.4M Tier 4: >P40k to P1.2M Tier 5: Not exceeding P40,000
Art. 355	Libel by Means of Writing	Fine of P200 to P3,000	Fine of P40,000 to P1,200,000 (plus cyber libel degree escalation under RA 10175)
Art. 365	Reckless Imprudence / Negligence	Fine of P200 to P1,000	Fine of P20,000 to P200,000 (if act constitutes grave/less grave felony)

4.2 Summary of Special Amending Laws

 **Republic Act No. 11648 (2022) - Raising Age of Sexual Consent:** Amended Articles 266-A, 337, and 338 of the RPC and special laws by raising the statutory age of sexual consent from 12 years to under 16 years. Sexual intercourse with a person under 16 is statutory rape punishable by Reclusion Perpetua, with a close-in-age exception (Romeo and Juliet clause) under defined statutory conditions.

 **Republic Act No. 11594 (2021) - Strengthening Anti-Perjury Law:** Amended Articles 183 and 184 of the RPC, substantially elevating the penalty for perjury from Arresto Mayor/Prision Correccional to Prision Mayor in its minimum to medium periods (6 years and 1 day to 10 years), and imposing perpetual absolute disqualification if committed by a public officer.

 **Republic Act No. 10592 (2013) - Good Conduct Time Allowance (GCTA):** Amended Articles 29, 94, 97, 98, and 99 of the RPC. Expanded time deductions for good behavior during preventive detention and final sentence. The Supreme Court in *Inmates of New Bilibid Prison v. De Lima* (G.R. No. 212719, 2019) ruled that RA 10592 applies retroactively to all prisoners without exception.

 **Republic Act No. 10175 (2012) - Cybercrime Prevention Act:** Section 4(c)(4) criminalizes Cyber Libel by computer systems. Section 6 provides that penalties for crimes defined and penalized by the Revised Penal Code shall be one degree higher if committed by, through, and with the use of information and communications technologies (ICT).

5. PART IV: LEGISLATIVE ROADMAP & JURIS DOCTOR STUDY GUIDE

For law students, legal practitioners, and Bar examinees, understanding the transition from the Revised Penal Code (Act 3815 as amended) to the Proposed Criminal Code of the Philippines is crucial:

- 1. For Court Practice & Bar Exams: Master the current provisions of Act No. 3815 as amended by RA 10951, RA 11594, RA 11648, and RA 10592, along with landmark Supreme Court jurisprudence.
- 2. For Policy & Legislative Tracking: Follow the congressional committee reports in the House Committee on Revision of Laws (Subcommittee on Penal Laws) and the Senate Committee on Justice and Human Rights.
- 3. Official Verification: Always verify current codal texts via the Official Gazette (officialgazette.gov.ph), Supreme Court E-Library (elibrary.judiciary.gov.ph), and Department of Justice (doj.gov.ph).